

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Andres X. Vargas

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect small lot ADUs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>5/9/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>11/19/2025</i>

HOUSE No.

By Representative Vargas of Haverhill, a petition (subject to Joint Rule 12) of Andres X. Vargas for legislation to further regulate zoning for accessory dwelling units. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect small lot ADUs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 Section 8 of Chapter 150 of the Acts of 2024 is hereby amended by removing the period
2 at the end of the sentence ending with “Chapter 64G” and adding:-
- 3 ;provided further that an accessory dwelling unit on a lot of not more than 10,000 square
4 feet shall be subject to no more than a five-foot side and rear setback, a five-foot separation
5 between detached structures, and shall be exempt from any lot coverage or open space
6 requirement.